De Facto Statehood and the Definitional Chauvinism of External Sovereignty

ABSTRACT

The international relations literature establishes the intriguing category of the "*de facto* state," which is typically defined as a polity that exhibits internal sovereignty but not external sovereignty. Scholars have problematized the binary classification of *de facto* and *de jure* states by critiquing the origins of these terms and arguing that all polities have limits to their internal and external sovereignty. I review relevant literature to show that the definitional confusion around the label "*de facto* state" can cause it to be applied inconsistently, and I present examples of existing polities often called "*de facto* states" that experience entirely different forms and levels of internal and external sovereignty. I argue that political scientists ought to adopt a more nuanced perspective on sovereignty that does not ignore the heterogeneity of emerging polities, and that using the term "*de facto* state" presupposes the variation we are trying to identify.

Keywords: Post-Soviet, Foreign Policy, Institutions, State Formation

INTRODUCTION

What is a *de facto* state? Baty (1951), picking up on what was then still a somewhat novel trend in the study of international relations, comments (in something of a polemic) that "the grudging and scanty recognition of temporarily successful rebels" was before about 1915 merely considered "recognition of belligerency" [3:166]. This kind of recognition entailed little in the way of diplomacy and less in the way of long-term prospects for international legitimacy. However, as "ephemeral governments sprang up to take control" during the Mexican Revolution, Baty bemoans that "for some inscrutable reason" [3:166], the internationally recognized states of the world came to "stigmatize" these regimes and similar rebellious polities and para-polities

emerging around the world as "*de facto* states." Baty complains that "nobody ever bothered to declare to what extent and in what way these quasi-states differed from normal states on the one hand, and belligerent communities on the other" [3:167].

Baty's implicit assumptions about what a "normal state" may be aside, his point that the term "*de facto* state" was opaque and inconsistently applied from the outset was echoed and refined effectively by some scholars in the following few decades, in particular Cochran (1968). Cochran quotes Leonard Meeker, then the Legal Adviser to the U.S. Department of State, confessing in a personal interview that "he was "not sure" if there was a difference between *de facto* and *de jure* recognition" [9:458]. Meeker notes, and Cochran discusses, how this ambiguity was of significant consequence to the circumstances surrounding the independence of the State of Israel in 1948. Questions of whether the United States extended "full" or only partial recognition of Israel immediately upon the establishment of the provisional government at the end of the British Mandate, whether the fullness of that recognition depended upon Israel holding democratic elections, and through what authority the United States recognized Israel as exercising its internal sovereignty were left unanswered or, worse, answered with contradictions. These same issues, whether a state can graduate from *de facto* status when the conflict that created it is not yet resolved [7], whether it matters if a state is democratic for it to be considered "*de facto*" or not [26], and whether internal and external sovereignty are meaningfully different when *de facto* states, and states in general, often depend upon external benefactors to exercise the functions of governance [6; 18], remain salient in the discussion today.

Despite these muddy origins, political scientists and international law experts have persisted in using "*de facto* state" as a common scholarly term, one which is now unavoidable when studying the boundaries of statehood and sovereignty, and for which a consistent definition

seems to have coalesced. Bakke et al. (2016) follow Pegg (1998) and Caspersen and Stansfield (2010) by identifying a consensus: "a state is considered a *de facto* state if it possesses internal sovereignty, in the sense that it has administrative control over most or all of the territory it claims, but lacks international recognition as a state (external sovereignty) by the existing community of states" [2; 8; 27]. While the authors acknowledge that most such states (and indeed most states in general) are born from civil conflict, this definition endeavors to be more holistic and descriptive than Baty's dismissive, prescriptive "temporarily successful rebels." It is a matter of debate whether any small state in the modern world has internal sovereignty, when so many would be insolvent without external economic and security resources provided by larger, stronger states [18]. Yet the Bakke et al. (2016) definition works well for certain notable polities, in particular Abkhazia and South Ossetia within the UN-recognized borders of Georgia. These "statelets," with considerable Russian support, administer themselves stably and without imminent threat of Georgian reconquest, but lack international recognition, in part because the recognized states of the world view them as Russian puppets whose recognition would support a general plan of Russian expansion, and indeed imperialism, in the former Soviet sphere [14; 15]. Indeed, most aspirational polities never obtain sufficient international recognition to escape the "*de facto* state" label, which is applied broadly by scholars and practitioners alike.

Yet there are many polities around the world which are frequently referred to in the literature and the press as *de facto* states to which the Bakke et al. (2016) definition seems to apply only partially or not at all. For example, the Republic of Artsakh (also known as Nagorno-Karabakh) existed within the internationally recognized borders of Azerbaijan, but between 1994 and 2023 was remarkably well-integrated into neighboring Armenia. The international relations consensus, while Artsakh existed, regarded it as a *de facto* administrative division of Armenia,

though one that was drawn on official maps within Azeri borders for diplomatic reasons [22]. This seems quite the opposite of the Bakke et al. definition: a polity that existed on paper for negotiating purposes, but was on the ground mostly a region of Armenia, administered and protected partially by Armenian authorities. Another example is Kosovo, which Serbia continues to regard as part of its *de jure* territory, but is now internationally recognized as its own nation-state by most countries outside the Russian sphere of influence. Its independence was made possible by a rebel army during a period of serious conflict, and it was certainly regarded by some as a rebellious *de facto* state in the 1990s [11]. Its ethnic and religious similarities with Albania, rather than Serbia, are at the root of the original conflict, and 2021 polls showed outright majorities of Kosovars and (even more strongly) Albanians in favor of unification, instead of Kosovar independence.

In the next section, I will conduct a short comparative analysis of several commonly cited "*de facto* states": the aforementioned South Ossetia and Abkhazia, Artsakh, and Kosovo, as well as Transnistria/Pridnestrovie, Somaliland and Puntland, Palestine, and Kurdistan. This analysis will show that even a cursory overview of what we call "*de facto* states" reveals fundamental differences across them in both internal and external sovereignty, as well as other wrinkles (such as degree of support from external benefactors). Thoughtful consideration of these factors suggests that the "*de facto* state" label, while certainly more nuanced and grounded than Baty's "temporarily successful rebels," is nevertheless applied too liberally, painting the picture of polities and politics in conflict zones around the world with too broad a brush and comparing geopolitical apples to oranges. I will argue that this imprecision could in fact undermine national causes' attempts at gaining international recognition, as the "*de facto* state" label becomes a prescription rather than a description: the international community may be reluctant to recognize

some so-called "*de facto* states" only because they lack external sovereignty, creating an unfair catch-22 for aspiring polities. Replacing this problematic label with a new one or establishing a sub-label for a certain group of these entities, such as "parastate," is in some ways appealing [31]. I argue that specifying and improving the taxonomy may help scholars be more precise with their claims, but it does not repair the underlying issue that using conceptual bins like this to begin with allows researchers to avoid engaging with the deeper problem that emerging polities are often so heterogeneous that it may be counterproductive to treat them as a single category, an issue already established in the literature [16; 32]. The antidote to this problem may be for political scientists to more often compare these states to their more established or recognized counterparts, rather than just to one another. We can continue to leverage the existing tools of comparative political analysis to investigate emerging polities, but we should avoid allowing language like the "*de facto* state" label to assign which cases we compare. Allowing the label to set the terms of the analysis is a definitional chauvinism we must move beyond.

ANALYSIS

"*De facto* states" are confusing in large part because sovereignty is confusing [18; 20; 24]. Some scholars differ from the Bakke et al. (2016) consensus. Bobick (2014) defines "*de facto* states" as "polities that exist within the boundaries of recognized, *de jure* states" [5:3]. This harkens back to Baty (1951), who refers to "the administration of part of the territory of a state by a rebel government for a time, and a long time" [3:166]. While Bobick's definition is less pejorative than Baty's, and leaves room Baty does not for changing boundaries and changing recognition, it is too broad in that it implicates the long list of recognized countries with border disputes with other recognized countries. A revised definition, "autonomous polities that exist

entirely within the boundaries of recognized states," is more exclusive, and may work well for most of the post-Soviet "statelets" [15], but ignores several oft-cited "*de facto* states" like Artsakh, Kosovo, Puntland, and Palestine, for reasons that will shortly become evident. Indeed, few characteristics unify the polities I am about to discuss other than that they tend to appear (as most new states do) under the specter of conflict [7; 26] and, of course, that they are referred to as "*de facto* states." This project is about the insufficiency of that label, and the following comparative analysis will show how different the polities to which it has been applied are in terms of sovereignty. In Table 1, I present an overview of how these entities vary across four key axes. This analysis is cursory by design; I do not intend to resolve specific empirical disputes about these polities' sovereignty. I am simply going to show that the term "*de facto* state" is used ubiquitously in the literature to refer to things that are actually not particularly similar.

Table 1: How *De Facto* States Vary *vis-à-vis* Internal Sovereignty, External Sovereignty, Reliance on Patron States, and Political Ambitions

Polity/ Factor	Artsakh	Kosovo	Kurdistan	S. Ossetia/ Abkhazia	Somali-land	Puntland	Palestine	Transnistria/ PMR
Internal Sov.	Region of Armenia	Very stable	Patchwork	Occupied	Fairly stable	Fairly stable	Occupied	Fairly stable
External Sov.	Recognized only by S. Ossetia, Abkhazia, and PMR, diplomacy with Tuvalu	Recog-nized by 109 UN states	Autonomy recognized by several UN states, indepen-dence not recognized	Recognized by Russia and allies	Recog-nized only by Israel, perhaps soon by Ethiopia	Not seeking recog-nition	Recog-nized by 157 UN states	Recognized only by S. Ossetia and Abkhazia
Reliance on patron	Complete	Some	Multiple patrons	Complete	None	Low	Multiple patrons	Significant
Political ambitions	Indepen-dence or union w/ Armenia	Indepen-dence or union w/ Albania	Multiple groups, multiple goals	Union w/ Russia	Indepen-dence, full UN member-ship	Reunion with Somalia once the situation improves	Indepen-dence, either a 1- or 2-state "solution"	Independence or union w/ Russia, Soviet revanchism

The surface-level analysis that follows in this section shows how the compared polities differ considerably with respect to internal sovereignty, external sovereignty, whether they have single, multiple, or no patron states, how much they rely on those patrons if they do have them, and what their long-term political ambitions are, whether independence, unification with the patron, increased local autonomy, or so on. As we investigate these polities, we should use more precise language than the "*de facto* state" label to describe them. The Bakke et al. (2016) definition construes them as more regular than they are: like all polities [18; 20; 24], their internal and external sovereignty is never absolute.

Artsakh

The Republic of Artsakh, also known as the Nagorno-Karabakh Republic, existed between 1994 and 2023 in the internationally recognized territory of Azerbaijan, but populated almost entirely by ethnic Armenians. Artsakh has consistently been included in conversations about the group of "*de facto* states" that have "mushroom[ed]" [26] since the end of the Cold War in the post-Soviet sphere [6; 14; 15; 16]. There are certainly similarities between Artsakh and the other commonly cited post-Soviet "statelets," in particular the others in the South Caucasus, Abkhazia and South Ossetia (which will be discussed momentarily). These analyses reveal considerable differences between Artsakh and the others, but the literature, when it has the idea that these differences suggest that these polities are not the same kind of geopolitical construct, rarely lingers on it.

Like South Ossetia, Abkhazia, and Transnistria/Pridnestrovie, Artsakh had a patron state that supported its administrative and security operations; unlike those polities, that patron was not a nuclear superpower (Russia) but a small nation with its own contests of sovereignty to wage (Armenia). Soviet borders drawn without much consideration for traditional ethnic and

geographical boundaries, and centuries of ethnic conflict in the Caucasus, left an ethnically Armenian, Christian enclave within the borders of Turkic, Muslim Azerbaijan. Upon the collapse of the Soviet Union, Armenia and Azerbaijan almost immediately went to war, with the 1994 "freezing" of the conflict involving Armenia occupying the land area between this enclave and its own recognized borders, and the enclave itself, historically known as Karabakh or Nagorno-Karabakh, declaring independence as the "Republic of Artsakh." Despite "deny[ing] that they are living on the mercy of Armenia" [16], Artsakh received enormous monetary and military support from its benefactor, and was variously recognized as independent, *de jure* part of Armenia, or Armenian-occupied territory of Azerbaijan depending upon who was doing the recognizing. Mychajlyszyn (2001) was clear about how international relations scholars understood the situation: "indeed, Nagorno-Karabakh is *de facto* part of Armenia" [22:221]. Armenia does not possess the overwhelming military might of Russia, and when war again broke out between Armenia and Azerbaijan, the Armenian military (including forces nominally belonging to Artsakh) was overwhelmed and the Karabakh area was overrun, its Armenian residents mostly going into exile.

Artsakh's lack of internal sovereignty was made painfully clear by its ultimate fate: in 2023, the conflict became hot once again, Armenia faltered, Azerbaijan won the war, and Artsakh, a *de facto* region of Armenia, was annexed by Azerbaijan, control of the territory changing everywhere but on maps and the Armenian population of Karabakh being expelled, an act that Armenian scholars have described as ethnic cleansing or genocide [21]. Its external sovereignty, on the other hand, was stronger than that of some of the other polities in this analysis: it was recognized by Abkhazia, South Ossetia, and Transnistria, but also by the Australian state of New South Wales and several local governments in Uruguay. Artsakh began

formal diplomatic relations with UN member Tuvalu in 2012, but never received official recognition. Its political ambitions, which can now be said to have failed, were either union with Armenia or internationally recognized independence.

Transnistria/Pridnestrovie

The polity commonly known as Transnistria – although that name is outlawed in the place itself, which is officially called the "Pridnestrovian Moldovan Republic," and locally "Pridnestrovie" – differs from the other post-Soviet "statelets" by geography, being the only one not located in the South Caucasus. It is also the only one that does not share a land border with its patron, Russia. Transnistria is, hence the name, located on a strip of land across the Dniester River within the internationally recognized boundaries of Moldova. The region is ethnically diverse (though mostly Russophone), more industrialized than the rest of Moldova, and claims stronger historical ties to Russia than does Moldova, which is mostly ethnically Romanian. Before the fall of the Soviet Union, Transnistria was already engaged in a series of attempts to gain increased autonomy from the Moldovan SSR, and after the events of 1991 these efforts turned from referenda to the use of military force. The 14th Soviet Army, which was housed in Transnistria, fought to secure the Russophone, industrialized region's independence from the nationalizing Moldova [5; 14]. The resulting war's ceasefire, which was signed in 1992, has held through the present day.

Transnistria's autonomy was ensured, and according to some of its residents a potential "genocide" of its inhabitants prevented [5], by the 14th Soviet Army, and Transnistria has maintained a decidedly pro-Soviet political identity for its entire existence. Transnistria's internal sovereignty is fairly high for an unrecognized state, with its own currency, (reportedly extremely corrupt) local government, laws (including many Soviet-era holdovers), and so on, though it

depends heavily on Russia for the resources it needs to administer its territory and most of its government functionaries hold Russian passports [5]. Its external sovereignty is much less secure: the PMR is recognized only by South Ossetia and Abkhazia, and not even by Russia itself, which officially regards Transnistria as part of Moldova despite its pervasive economic influence and military presence there. Thus, it serves as a poster child for the Bakke et al. (2016) definition of "*de facto* state." Russia's invasion of Ukraine closed Transnistria's main avenue for receiving resources from its patron (through Ukraine), and over the past few years, relations between Transnistria and Moldova have warmed somewhat due to Transnistria's necessity, pointing at a potential peaceful "unfreezing" of the situation that may be on the horizon if the situation unfolds beneficially [25]. This could mark a significant shift away from Transnistria's longstanding political ambitions of Soviet revanchism, independence from Moldova, and potential annexation by Russia.

Kosovo

Hedges (1999) writes of "the newest political and military force to beset the Balkans," a guerilla army "rising from the fetid hovels of Pristina and the concrete-block family farms of rural Kosovo" [11:24] to challenge Serbian authority and render impossible a peaceful compromise solution between Serbia and the Kosovar population it was then sovereign over. This lurid description, reminiscent of Baty's "temporarily successful rebels," evokes the violence and chaos that characterized the situation in the Balkans in the 1990s. It also points to how quickly the situation has changed since the turn of the millennium. Kosovo, which in 1999 was an ethnically Albanian, predominantly Muslim, impoverished and racialized backwater in Serbia, is now a stable, partially democratic [26], quickly developing economy and party to the international community, recognized by 109 UN member states.

Kosovo's internal sovereignty is hard to question, although persistent Serbian influence remains in some northern parts of the country and among Serbs living in Kosovo. Its economy is growing, its human development index is rising, and its defense budget is expanding [19]. Support from Albania and the United States has been integral to this process, and Albania can be regarded as something of a patron to Kosovo, but this relationship is complicated. Kosovar independence was ensured by the NATO peacekeeping operation in Serbia, not by any direct military action by Albania. As for external sovereignty, Kosovo was recognized soon after its independence by the United States, in a move Russia, a Serbian ally, argued was directly antagonistic to its interests in the Balkans. Russia still does not recognize Kosovo, along with Serbia, China, and dozens of other UN members, but 109 UN members do. Kosovo's international relationships are growing deeper over time, and either confirming Russian fears or in response to them, it has made consistent efforts to join NATO since its formal independence in 2008 [19]. Whether long-term independence is Kosovo's goal or not is less clear. According to Euronews polling, a large majority of Albanians and a smaller majority of Kosovars are in favor of unification between the two Albanian countries [17].

South Ossetia and Abkhazia

South Ossetia and Abkhazia, two regions within the internationally recognized borders of Georgia, are the last of the four post-Soviet "statelets" along with Artsakh and Transnistria/Pridnestrovie. These regions, which are peopled by Caucasian but mostly not Georgian ethnics with more historical loyalty to Russia than to Georgia, were occupied after the fall of the Soviet Union by similar separatist causes, and their *de facto* independence was entrenched – and was indeed the *cause célèbre* of – the 2008 invasion of Georgia by Russia, the patron of both polities. This war, likely not coincidentally, came only months after Kosovo's

independence in 2008. South Ossetia is highly undemocratic, though Abkhazia has a healthier civil society [16; 26]. Many Abkhaz and nearly all South Ossetian residents are Russian citizens. Abkhaz authorities have been more willing to try social reforms than their South Ossetian counterparts [16]. Both polities are sometimes considered little more than Russian occupation zones, although this is highly dependent on geopolitical alignment.

Even though Bakke et al. (2016) use Abkhazia and South Ossetia as central examples of *de facto* states in their analysis, their lack of internal sovereignty strains the applicability of the authors' definition of what a *de facto* state ought to look like. Like Artsakh was, Abkhazia and South Ossetia are entirely reliant on Russia for resources, military protection (and threat of force) against Georgia, and the basic requirements of state capacity. Abkhazia, according to Kolstø and Blakkisrud (2008), is "not able to provide its citizens with the preconditions for an adequate livelihood and has to rely on a neighboring state [Russia] to provide basic service" [16:494]. Despite their gradually improving local economies and the slow lifting of blockades and sanctions, Abkhazia and South Ossetia are not meaningfully internally sovereign as long as their authorities remain incapable of the functions of governance. Externally, they fare a little better: perhaps in response to the swift recognition of Kosovo by the US and its allies, Russia, along with a few of its own UN member allies like Venezuela, recognize both Georgian breakaway polities. Both Abkhazia and South Ossetia consider themselves Russian dependencies, with the Abkhaz foreign minister telling Kolstø and Blakkisrud (2008) that Abkhazia is a "protectorate" of Russia, along with an accusation that Georgia is a "protectorate" of the United States. The eventual goal of these polities appears to be Russian annexation.

Somaliland and Puntland

"Embryonic governments," as Johnson and Smaker (2014) call them, emerged after the collapse of the Somalian state in 1991, one evolving into the Republic of Somaliland, an independent polity seeking recognition as a nation-state by the international community, and the other into the State of Puntland, an autonomous region which still considers itself part of Somalia and seeks reintegration into it as a subnational division once the situation in Somalia improves (which has not happened since the 1991 crisis) [13]. Both Somaliland and Puntland have had to survive without loans, aid, international protection, and the other assistance governments in collapsed states usually have access to, but despite ongoing civil conflict and the threat of terrorism, they have remained considerably more stable and secure than Somalia proper, a government Somaliland considers itself independent of and Puntland regards as illegitimate.

The different directions toward internal sovereignty taken by Somaliland and Puntland have resulted in diverging challenges and characteristics [13]. Both polities maintain their own militaries, which struggle with insurgent groups but maintain security control around most population centers. Johnson and Smaker (2014) argue that Somaliland's aspiration for independence, as fraught as its path has been, has had a unifying, democratizing effect on its people and has strengthened its overall state capacity, important first steps to sovereignty in a post-colonial world where the term means less than it does in the orderly, post-Westphalia order [23; 24]. Puntland, on the other hand, wishes to remain part of Somalia, and does not seek international recognition; it only intends to maintain its autonomy insofar as it must for the sake of stability while the Somalian government flounders. This has contributed to anti-democratic tendencies and diminished support for local authorities from residents, who would prefer a system more like that of Somaliland (or for Puntland to unify with Somaliland). Somaliland's quest for international recognition has so far resulted in some sympathetic ears, but only one UN

member state, Israel (which has its own issues with external sovereignty), has recognized it, and only very recently as of the time of this writing. Ethiopia has also committed to recognizing Somaliland, as part of a 2024 agreement that has not yet taken effect.

Palestine

In the aptly titled paper *Does the State of Palestine Exist?*, Segal (1989) lists many characteristics that the polity of Palestine shared with recognized states at the time of writing, along with many that it did not [29]. While the (first) Intifada represented a transference of obedience by Palestinian civilians from Israeli authorities to their own authorities, most of the state-like qualities of the State of Palestine relate to its external sovereignty, and few relate to its internal sovereignty, unlike many of the other polities discussed in this paper.

Palestine likely has the most external sovereignty of any remotely commonly cited "*de facto* state," with the possible exceptions of Taiwan (the Republic of China) and the State of Israel, neither of which are referred to as "*de facto* states" in the contemporary context except by their most strident political opponents. Palestine is the only polity I analyze here whose territory does not completely lie within the legal boundaries of another internationally recognized state, although Israeli settlements continue to pick away at Palestinian territorial control of the West Bank, and hardliners within the Israeli Knesset call for annexation of all the Palestinian territories and beyond on a semi-regular basis. Whether or not this happens on paper, it is certainly happening on the ground, as Israeli settlers prove that *de facto* and *de jure* seizure of territory need not go hand in hand when the seized territory lacks internal sovereignty to resist [12]. Palestine is also a member of the Arab League, a major international organization, and recognized by 157 UN members, more than any other state I discuss here, including Kosovo.

However, the internal situation in Palestine is, as of 2026, more dire than that of any other state I discuss here, with the exception of the completely dissolved Republic of Artsakh. Israeli troops have occupied the West Bank continuously since the 1960s, and despite leaving the Gaza Strip in 2006, invaded it in 2023 after the October 7th attacks. The result has been a humanitarian catastrophe in Gaza where tens to hundreds of thousands of Palestinians have been killed and millions displaced, a situation scholars regard as genocide [30]. The long and short of the situation for these analytical purposes is that, while its external sovereignty is, on the whole, actually quite robust, the State of Palestine's internal sovereignty has been completely penetrated by Israel. Israeli occupation, as well as attempts at annexation and influence over parts of the Palestinian territories by Jordan and Egypt, have compromised attempts to build this internal sovereignty since the end of the British Mandate in 1948 [9; 29; 30]. Palestine also receives considerable support from international organizations, without which the local administration of the areas where the Palestinian Authority does have meaningful power would be impossible.

Kurdistan

Gunter (2014) describes the Kurdish struggle for independence as a "continuous series of revolts" [10:163] across the regions where Kurds live, which span the recognized borders of Turkey, Iran, Iraq, Syria, and parts of the former Soviet Union. While "Kurdistan" is frequently used to refer to the potential Kurdish state that could exist in this region to represent the Kurds on the international stage, empires and nation-states have risen and fallen in the area since World War I, with constant efforts by Kurds to obtain some kind of autonomy or self-determination, no internationally recognized polity by this name or for these people has come into being, despite proposals for Kurdish independence in international agreements like the 1920 Treaty of Sèvres.

The varying fortunes of the Kurds across the internationally recognized nations within which they live have resulted in a patchwork of varying internal and external sovereignty representing them. In Turkey, the Kurds are an oppressed minority represented by political parties (some of which are sometimes argued to be terrorist organizations or freedom fighters). In Iraq, they are the second largest ethnic group and govern a semi-autonomous state in the north of the country, their autonomy (though not independence) recognized by several UN states and their military partially to credit for the defeat of the Islamic State in Iraq. In Iran, the subnational province of Kurdistan and its surroundings are home to a highly diverse group of almost 5 million people, some of whom identify as Iranian, others as Kurds alone, some of whom struggle for independence and autonomy, others of whom do not [4]. The solution to the so-called "Kurdish Question" may be that it is in fact many questions: "chances for some type of Kurdish statehood will vary in each state in which the Kurds live" [10].

DISCUSSION

Kolstø (2006) critiques the term "quasi-state," investigating the state of the literature at the time of writing and finding it lacking, either too focused on the post-Soviet space or ignorant of it [15]. Some would-be state polities, Kolstø says, lack the ability to govern (internal sovereignty), others lack international recognition (external sovereignty), but the term "quasi-state" is confoundingly used for both. This argument is well taken, and the term "*de facto* state" deserves similar scrutiny; it has in some ways simply replaced "quasi-state" as the confusing label *du jour* for emerging polities in conflict zones. It is true that similar circumstances — including imperial decline like the end of the Soviet Union or civil conflict and the collapse of state capacity in places like Somalia and Serbia/Kosovo — tend to produce smaller polities vying

and sometimes competing for international recognition. At first blush, it is a reasonable assumption that these polities might be analytically similar enough to merit a shared label like "*de facto* state." This assumed similarity inspires us, as many researchers have, to conduct comparative analysis regarding these polities.

But even a simple comparative analysis like the above shows that so-called "*de facto* states" differ from one another as much as any other polities do. It is certainly appropriate to compare them [28]; it is not as responsible to conflate them, especially since the very comparative analysis conducted in this paper and many others [2; 6; 7; 8; 16; 26; 27; 28], inspired by the common label used for them, shows how starkly different they are. I am far from the first scholar to propose that this heterogeneity presents a problem for the continued use of the term "*de facto* state," and Marandici (2024) even conducts a similar (though more in-depth) comparative analysis of Transnistria and Taiwan to show how much these states vary [32]. Some researchers have encouraged the adoption of terms like "parastate" to more precisely describe "subunit[s] of the *de facto* state family" [31]. This is a considerable improvement over the confusion induced by the *status quo*, but my contention in this paper is that the underlying issue is that we tend to deposit emerging polities into a single conceptual bin to begin with. These are as heterogeneous as any other nation-states, and to treat them prescriptively as though they ought to have within-group consistency only invites the issues the literature has repeatedly identified that come with defining and comparing them.

The literature suggests that this definitional confusion may also have negative foreign policy implications. The diplomats and statespeople who make important decisions about the recognition of states are familiar with the "*de facto* state" and "quasi-state" labels, as everyone from Baty (1951) to Kolstø (2006) can attest [3; 15]. Emerging polities are in need of foreign aid

and other external support to secure their internal sovereignty [13]. Indeed, whether internal and external sovereignty are not two expressions of the same thing, at least for small states, is another debate: we live in a post-Metternich world where independent polities at the fringes of great powers and international organizations exist at their mercy. These states, whether recognized or not, are dependent on larger and/or more recognized powers and institutions for access to international services, commerce, and other resources, but these resources are usually harder to access when recognition is lacking [13; 16; 31; 32; 33]. Small polities without recognition are therefore less likely to be appealing trade partners, cannot field strong militaries, and generally cannot build up their administrative capacity enough to be viewed as peers by recognized states, but those are exactly the characteristics they would need to display in order to obtain that recognition. This creates a negative feedback loop where polities need recognition to obtain resources, but they also need resources to obtain recognition. Unless they happen to be smiled upon by a great power or the UN (e.g. Kosovo), usually for reasons beyond their control, these unfortunate polities are liable to become not "*de facto* states" but failed states or conquered territory like Artsakh, bad-for-human-rights outcomes the international system ostensibly seeks to avoid at all costs.

The *de facto* state "stigma" [3] hangs over Somaliland and similar aspirational polities as they vie for security and stability in an unforgiving world. In order to obtain international recognition, Somaliland must secure their internal sovereignty and engage in diplomacy with the international community [29, after Weber]. This is an unfair catch-22: the international community often engages less with "*de facto* states" because they lack resources they need recognition to obtain, ultimately because they bear the "de facto" label, even if the label doesn't tell them anything about the polity at all [33]. When these states do achieve recognition, as

Somaliland recently has from Israel and South Ossetia and Abkhazia have from Venezuela and other Russian allies, it is often for the opaque political reasons of the states doing the recognizing rather than as a gesture of good faith in the international system or out of a desire to improve the human rights situation in the newly recognized state. I am of course not making the aggressive causal claim that using the label "*de facto* state" contributes to global human rights abuses, but I do very much follow Ker-Lindsay and Berg (2018) that "engagement without recognition" seems promising for conflict and harm reduction [33]. A case-by-case rather than totalizing foreign policy regarding emerging polities, recognized or otherwise, may help disentangle internal and external sovereignty and encourage judicial rather than violent solutions to conflict.

A critical perspective on international relations ought to propose a better way of talking about sovereignty than simply labeling every non-UN or newly emerging or rebellious or autonomous polity a "*de facto* state." While intended as a better, more holistic description of how governments exist in the world than the crude "temporarily successful rebels" sort of language referenced by Baty (1951) [3], the "*de facto* state" term is too indulgent of the instinct of the political scientist to name categories and sort things into them. As such, it has become more of a prescription than a description: whether as stigma, smear, or too-broad label, "*de facto* state" tends to group unlike things much more often than it identifies similar ones [32].

The temptation to just come up with a new name, as "*de facto* state" replaced "rebels" and "quasi-state," or perhaps define our categories slightly differently, must be resisted, or we will just end up in the same trap again. When a nascent government emerges somewhere in the world and tries to express its sovereignty, political scientists should avoid the urge to compare it only to other unrecognized or rebellious polities. Instead, we should be more curious about its similarities and differences with recognized states as well, and not just its patron. Much ink has

been spilled about variation within the post-Soviet "statelets" or between Somaliland and Puntland, but much less about how attitudes toward the Soviet Union differ between, say, Transnistria and Latvia. How do Somaliland, Puntland, and Djibouti compare in terms of their legislative systems, and how do they each contend with their recognized but rogue neighbor, Eritrea? As faith in the international system gradually decays, new polities emerge in conflict zones more and more often. Recently (and briefly), separatists in southern Yemen declared the independence of the short-lived "State of South Arabia," a development whose consequences might be understood much better if this government were compared not just with so-called "*de facto* states" but also to other Middle Eastern polities with international recognition [1].

Let us build a flexible way of thinking about sovereignty that can consider how states emerge without prescribing whether they deserve to. Our goal should be the resolution of the conflicts that tend to produce new governments and the betterment of the lives they affect. That resolution may take resources that currently come only through recognition. We cannot solve international conflict with white papers and comparative analysis, but it is still possible to lift the gate of the "*de facto* state" label that stands between societies in crisis and some of what they need to improve the situation. Taiwan and Hong Kong, polities that meet the Bakke et al. (2016) description remarkably well, are almost never referred to as "*de facto* states," although the literature has occasionally entertained this to reveal some of the inadequacies of the label [32]. Despite lacking official recognition even from some of their close trade partners, they are examples of societies on the fringes of external sovereignty that nevertheless boast strong economies and productive, if tacit, participation in world affairs. Both are unblinkingly compared to recognized states and famously categorized as "Asian Tigers" along with UN members South Korea and Singapore. Their security situations are precarious indeed, but then

again, so are those of many small states around the world, recognized or not. Rethinking the "*de facto* state" label can help us be more honest about that precarity and, perhaps, address it with better policy that can assist the people of states regardless of their recognition status [33].

When analyzing claims to sovereignty, precarity should be front and center for thoughtful international relations scholars. I do not suggest using another insufficient binary classification like "precarious states" versus "secure states." Instead, a better methodological intervention would be to use the tools already at our disposal, like comparative case studies, quantitative modeling, and archival analysis, without subscribing to a definitional chauvinism that presupposes the variation we are trying to identify and explain. When investigating states like those discussed in this paper and in the "*de facto* state" literature, we should resist the easily refuted assumption that they are internally consistent. Analysis of the Horn of Africa should not neglect goings-on in Somaliland when the main concern is Eritrea, and vice versa. Analysis of the Middle East should not disregard Kurdistan or Palestine just because of their recognition situations, especially given those of states in the region that are typically not called "*de facto*" despite also being incompletely recognized. When examining the sovereignty of states and state-like polities, no matter who recognizes them, political scientists ought to consider not only simple axes of variation like internal and external sovereignty but also where the polity's claims to and *de facto* control over its sovereignty originate from, how much it relies on international exchange to bolster its internal sovereignty, whether its security apparatus, administrative capacity within and outside its territorial control, and international recognition are often tested, and so on. A critical, case-by-case lens can help us understand the nuances of sovereignty – and it is much more nuanced than we give it credit for – better than boxes with labels can.

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